

Can Female Staff Work Night Shifts in Nigeria? What the Labour Act Actually Allows

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Employers running round-the-clock operations — logistics, manufacturing, ports — regularly ask whether female junior staff can be rostered onto night shifts. The starting answer under the Labour Act is no, but the Act also sets out a specific, workable route to yes.

The Default Rule and Its Exceptions

Section 55(1) of the Labour Act prohibits women from engaging in manual labour at night in private or public industrial or agricultural undertakings. Section 55(2)(1) carves out two standing exceptions: nurses, and women employed in non-manual, managerial-level positions. Outside those exceptions, a blanket restriction applies by default.

The Two-Part Gateway to Night Work

Section 55(5) of the Act sets out how an employer can lawfully deploy female junior staff on night shifts despite the general restriction, and it requires two things to align, not one:

- A collective bargaining agreement between the employer and the relevant workers' union, spelling out the agreement to permit women to work night shifts along with the specific protections and preparations put in place for them; and
- A discretionary Order from the Minister of Labour and Employment excluding the employer from Section 55(1)'s restriction — and critically, the Minister's discretion is not automatically triggered just because a compliant collective bargaining agreement exists.

In other words, the collective bargaining agreement is a precondition for the Minister's approval, not a substitute for it. An employer that puts a strong agreement in place but never obtains the Ministerial Order is still operating outside the Act.

What Precedent Looks Like in Practice

The Ministry of Labour and Employment has granted approvals of this kind before — for instance, to APM Terminals at Apapa, Lagos, in January 2019, on the strength of a permit application accompanied by a collective bargaining agreement containing concrete physical safety provisions and a maternity policy. That is a useful benchmark for what the Ministry expects to see: not just a statement of intent to allow night work, but specific, documented protections.

Building the Collective Bargaining Agreement

A collective bargaining agreement supporting a night-shift request should go well beyond a bare permission clause. It should address: safe transportation arrangements to and from work; concrete measures against harassment and abuse; a maternity policy; the number of hours per shift and shifts per week; rest and relief periods (including provisions specific to female employees' needs) structured so as not to disrupt productivity; consequences for violations of rest and relief periods; a mechanism for notifying the union if rest and relief arrangements are discontinued; and a dispute resolution clause. That last point matters more than it might seem — the Minister's Order is discretionary and can be revoked if things go wrong on the ground, so a clear internal mechanism for resolving disputes before they escalate helps protect the underlying permission.

Nigerian courts have consistently treated a validly concluded collective bargaining agreement as binding on the employer and the union it was negotiated with, provided it covers matters properly within the scope of collective bargaining — see *A.C.B. Plc v. Nbisike* (1995) 8 NWLR (Pt. 416) 725 and *Nwajagwu v. British American Insurance Co. Ltd* (2000) LPELR-107766(CA). That is part of why the agreement, not just the Minister's Order, matters in its own right: it is the enforceable internal document the employer and union will each be held to.

The Underlying Tension — and the Practical Risk

There is a legitimate argument that restricting women's working hours by default sits uneasily with the equal-opportunity guarantee in Section 42 of the 1999 Constitution, and with the social-justice and non-discrimination objectives set out in Section 15(2) and (3) and Section 17(3) of the Constitution, as well as with the Protocol to the African Charter on Human and Peoples' Rights on the Rights of Women in Africa. Nigeria has also not ratified the ILO's Night Work Convention (No. 171), which sets out international standards for protective measures around night work. None of that changes the operative domestic rule, but it explains why the Act's approach — permitting night work only through a negotiated, Ministerially-approved framework, rather than banning it outright or allowing it freely — sits where it does. On the practical risk side, the penalty for breaching Section 55(1) without the Section 55(5) exemption in place is a fine not exceeding ₦100 or imprisonment for a term not exceeding one month, or both, under Section 58(2) — a figure that has not been revised in line with inflation and is strikingly low by current standards, though the greater practical risk for most employers lies in workplace safety, reputational, and union-relations exposure rather than the statutory fine itself.

A note on currency of the law

Section 55 of the Labour Act, and the collective-bargaining-plus-Ministerial-Order gateway described here, remain unchanged. The pending Labour Act amendment bill on casualisation and outsourcing (covered in a separate article) does not touch this provision.

Nigeria's non-ratification of ILO Convention No. 171 and the outdated ₦100/one-month penalty under Section 58(2) also remain unchanged as at 2026.

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